

26VECP00275 26VECP00275

County: los-angeles

Division: Civil Law and Motion

Department: B

Hearing date: 2026-07-28

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Tentative Ruling

State Farm Insurance v. Bondy, Case
no. 26VECP00275

Hearing date July 28, 2026

Petitioner

State Farm's Motion to Compel Arbitration – JOINED BY RESPONDENT

Petitioner

State Farm Insurance filed a complaint against respondent Bondy to have the court appoint a neutral arbitrator on this uninsured/underinsured motorist claim. See Compl., paras. 3-4. Petitioner moved to compel arbitration, seeking a court order appointing a neutral arbitrator per to Code Civ. Proc. §1281.6. Respondent joins.

This

claim arises from a 3/6/23 motor vehicle collision. See Decl. Krueger, para. 4. Ins. Code §11580.2(f) requires UM/UIM arbitration to proceed before a single neutral arbitrator. The policy between the parties incorporates section 11580.2 but fails to provide a mechanism for selecting a neutral arbitrator. Id. at para. 5, exh. A. The parties exchanged proposed arbitrator lists but have been unable to agree on a single neutral arbitrator. Id. at paras. 20-26, exh. I.

Petitioner

requests the court either appoint a neutral arbitrator or, in the alternative,

nominate a list of five potential neutral arbitrators, with the court retaining authority to appoint one of the five if the parties are unable to select one themselves within five days. Respondent joins in the alternative request.

GRANTED;

the court will discuss with the parties how to create the list of five potential arbitrators. The court encourages the parties to meet and confer in advance of the hearing.